

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #01	CCRB Case #: 202201566	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 03/11/2022 5:30 PM	Location of Incident: Inside and in front of the 45th Precinct stationhouse	18 Mo. SOL 9/11/2023	Precinct: 45
Date/Time CV Reported Sat, 03/12/2022 3:07 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 03/12/2022 3:07 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO James Biondo	25292	936208	045 PCT
2. PO Glasjun Pereyra	09368	965407	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christopher Rath	21416	959921	045 PCT
2. PO Adeline Tom	15222	964316	045 PCT
3. SGT Armando Colon	00690	941577	045 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO James Biondo	Abuse: Police Officer James Biondo issued an unlawful summons to § 87(2)(b)	A . Substantiated
B . PO Glasjun Pereyra	Force: Police Officer Glasjun Pereyra hit § 87(2)(b) against an object.	B . Unfounded
C . PO James Biondo	Force: Police Officer James Biondo used physical force against § 87(2)(b)	C . Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On March 12, 2022, § 87(2)(b) filed this complaint with the CCRB via its call processing system.

On March 11, 2022, inside the 45th Precinct stationhouse, in the Bronx, Police Officer James Biondo issued an unlawful summons to § 87(2)(b) (**Allegation A: Abuse of Authority: substantiated**). As § 87(2)(b) exited, Police Officer Glasjun Pereyra hit her with the door of the stationhouse (**Allegation B: Force: unfounded**). Outside, PO Biondo twisted § 87(2)(b) left arm behind her back (**Allegation C: Force: substantiated**). § 87(2)(g), § 87(4-b)

Body worn camera footage was obtained from PO Biondo and PO Pereyra, both from the 45th Precinct (01-03 Board Review).

§ 87(2)(b) was issued a summons for disorderly conduct as a result of the incident (09 Board Review).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer James Biondo issued an unlawful summons to § 87(2)(b)

The following facts are undisputed: On March 11, 2022, at 5:30 P.M., § 87(2)(b) went with her 18-year-old daughter, § 87(2)(b) to the 45th Precinct stationhouse, in the Bronx, to report a male who had been harassing § 87(2)(b) online. Inside, the two spoke with PO Biondo, who informed them that he could not file a complaint. While leaving the stationhouse, § 87(2)(b) displayed her middle finger at PO Biondo, who subsequently followed her out of the stationhouse, placed her in handcuffs, and issued her a summons for disorderly conduct.

§ 87(2)(b) stated her ex-husband, and § 87(2)(b) father, § 87(2)(b) (a member of The New York City Fire Department) drove her and her daughter to the stationhouse (04 Board Review). Upon arrival, § 87(2)(b) waited in the car outside while the two women went in. After signing in with a Police Administrative Assistant (PAA), they approached the front desk and spoke with two officers, identified as PO Biondo and PO Adeline Tom. When § 87(2)(b) requested to file a report, PO Biondo asked her to specify what type of report. As she began explaining the harassment her daughter was experiencing, PO Biondo stated that § 87(2)(b) should be the person to provide the statement, as she was 18 years old and the subject of the harassment. After § 87(2)(b) gave a statement, PO Biondo told her that he could not do anything with the information she provided him. When § 87(2)(b) realized that he was not going to file a report, she and § 87(2)(b) went back out to § 87(2)(b) car. They told § 87(2)(b) that the officers treated them poorly, and § 87(2)(b) entered the stationhouse with § 87(2)(b) in tow. § 87(2)(b) stayed in the car. § 87(2)(b) approached the front desk and asked what action he, his daughter, and his ex-wife were supposed to take if the police refused to file a report. PO Biondo told him that he and his ex-wife were being loud and screaming. PO Biondo started raising his voice, at which point § 87(2)(b) turned to leave. As she neared the interior front door of the stationhouse, she turned around and stuck her middle finger up at PO Biondo.

§ 87(2)(b) and § 87(2)(b) testimonies were largely consistent with § 87(2)(b) (05-06 Board Review). § 87(2)(b) stated that when he spoke with PO Biondo about the harassment, PO Biondo appeared visibly annoyed and told him nothing could be done. § 87(2)(b) determined the situation was not going to improve so he turned to § 87(2)(b) and said, "Let's go." As she walked toward the interior set of doors, PO Biondo said something along the lines of "I can have anybody

removed from this building whenever I want.” § 87(2)(b) responded by giving him the middle finger. At that point, PO Biondo yelled “That’s it. You’re under arrest.”

Summons § 87(2)(b) issued by PO Biondo, states § 87(2)(b) was in violation of New York State (NYS) Penal Law 240.20, Subsection 1 (09 Board Review). The Factual Allegations sections states, “At TPO [time and place of occurrence], undersigned [PO Biondo] observed the defendant § 87(2)(b) in the 45 Precinct. Defendant engaged the undersigned in a verbal dispute. Defendant yelled, screamed, cursed, and stated ‘fuck you’ to the undersigned, causing a crowd to form. Undersigned states the actions of the defendant were violent and threatening in a public place.”

At 00:34 in PO Pereyra’s BWC footage (01 Board Review), he exits a room adjoining the main lobby of the 45th Precinct stationhouse and walks towards the front desk, approximately 20 feet away. § 87(2)(b) (Hispanic female, black jacket, long, black hair) is standing at the front desk with § 87(2)(b) (White male, black hoodie, short, dark hair). PO Biondo and PO Christopher Rath stand behind the front desk. At 00:42, PO Biondo, who is looking at § 87(2)(b) has his right hand raised above his shoulder and motions twice in the direction of the exit. Five seconds later, § 87(2)(b) and § 87(2)(b) begin walking towards the exit. Three women are seated in the waiting area of the lobby speaking with PO Tom. A fourth woman, identified as PAA Latisha Camacho, is seated at a desk six feet from the interior front doors. At 00:49, as she makes her way to the exit, § 87(2)(b) raises the middle finger of her right hand and looks backward over her right shoulder. The four women remain seated and do not physically react to § 87(2)(b) gesture or exit. Of the three women seated in the waiting area, the two on the left are looking at PO Tom, who is leaning down facing them. The woman on the right is looking down at her cell phone. Their facial expressions remain unchanged, and none look at or toward § 87(2)(b). Two seconds later, PO Biondo comes out from behind the front desk and together with PO Pereyra, follows § 87(2)(b) and § 87(2)(b) into the vestibule.

PO Biondo stated that he declined to file a harassment complaint based on the description that § 87(2)(b) provided and she and § 87(2)(b) left the stationhouse (07 Board Review). A few hours later, § 87(2)(b) and § 87(2)(b) returned with § 87(2)(b) and again tried to file a report. PO Biondo again explained that no crime had taken place and that no harassment had occurred. § 87(2)(b) became irate and started talking loudly. There were three or four civilians standing near the front door to the precinct at the time observing § 87(2)(b). Their facial expressions indicated that they were alarmed. PO Biondo told § 87(2)(b) and § 87(2)(b) that he could not help them and that they needed to leave. § 87(2)(b) turned and started walking toward the door with § 87(2)(b). As she did so, the three to four civilians standing near the door moved in the direction of the front desk to get away from § 87(2)(b) as she exited. After viewing PO Pereyra’s BWC footage, PO Biondo stated three civilians in the footage, the black woman in the white coat, the black woman in a black coat, and the lighter complected black female in a black coat, can be seen looking at § 87(2)(b) and described them as all annoyed, alarmed, and shocked, though they were sitting rather than standing and none of the civilians moved away from § 87(2)(b). When § 87(2)(b) neared the interior front door, she screamed “fuck you” to PO Biondo and gave him the middle finger. He stated that at that point he decided to issue § 87(2)(b) a summons for disorderly conduct. He felt threatened because § 87(2)(b) said, “fuck you” and gave him the middle finger. He stated he did not know what she was going to do after that and that if he “sat there and did nothing” after § 87(2)(b) “cursed [him] out and gave [him] the finger,” he did not know if § 87(2)(b) was going to throw something at him. He acknowledged, however, that § 87(2)(b) took no such physical actions. Upon making the decision to issue § 87(2)(b) a summons, PO Biondo stood up and walked towards the door. When asked to explain the statement that he made on § 87(2)(b) that a crowd formed in reaction to § 87(2)(b) behavior, PO Biondo referenced the three civilians present in the lobby and their observance of § 87(2)(b).

PO Pereyra stated he was walking to the “124 room” (complaint room) when he heard a commotion in the lobby and observed § 87(2)(b) “screaming and yelling” at PO Biondo near the front desk (08 Board Review). He did not recall what she was screaming. Four other civilians were inside the stationhouse at the time, including a civilian employee who was working as the greeter. He did not know why the three seated in the lobby were in the stationhouse at the time but stated they were there prior to the incident involving § 87(2)(b). As § 87(2)(b) made her way toward the exit, she stuck her middle finger up at PO Biondo near the interior exit door. She did so very aggressively and that it made the civilians, who were seated in the lobby at the time, look scared as indicated by their facial expressions, which conveyed shock. There was nothing else about the civilians’ behavior that he found noteworthy. PO Pereyra stated a crowd did not form inside or outside in response to § 87(2)(b) behavior and that no additional people approached the scene at any point. PO Biondo then stated, “I’m going to give you a summons now,” at which point PO Pereyra “engaged” by following § 87(2)(b) as she exited the stationhouse.

NYS Penal Law Section 240.20 Subsection 1 states a person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, “He [sic] engages in fighting or in violent, tumultuous or threatening behavior” (10 Board Review).

According to People v. Baker, 20 N.Y.3d 354 (2013), when determining whether a person is guilty of disorderly conduct, police officers are to consider the public harm element of the conduct by assessing the nature and character of the conduct, the time and place where the conduct occurred, the number of people in the vicinity, whether people in the vicinity were drawn to the disturbance, how many were drawn to the disturbance, and how those people reacted to the disturbance (18 Board Review).

In People v. Gonzalez, 25 N.Y.3d 1100 (2015), the court held that an arrestee’s conduct *did not* satisfy the public harm element (19 Board Review). The case pertained to an individual who shouted obscenities at police officers in a subway station, which provoked looks of “surprise and curiosity” and “evasive movements” from some bystanders. The Court explained that a person may be arrested for disorderly conduct “only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public concern.”

PO Biondo stated that while § 87(2)(b) had been screaming while inside the stationhouse, it was not until she gave him the middle finger and screamed “fuck you” that he decided to issue her a summons as he felt that the behavior was threatening and causing alarm. § 87(2)(g)

§ 87(2)(b) All parties acknowledged that § 87(2)(b) was leaving the stationhouse when she made the gesture, diminishing the threat to those inside. And while PO Biondo emphasized the reaction of the bystanders in explaining his issuance of the summons, BWC shows that the four women seated in the lobby remained seated, did not back away or approach the desk as PO Biondo initially stated, nor did their facial expressions change or convey obvious signs of annoyance, alarm, or shock.

§ 87(2)(g)

§ 87(2)(b) PO Pereyra, who stated that the women were present prior to § 87(2)(b) interaction with PO Biondo. § 87(2)(g)

(g)

it is recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Force: Police Officer Glasjun Pereyra hit § 87(2)(b) against an object.
Allegation (C) Force: Police Officer James Biondo used physical force against § 87(2)(b).

After descending the vestibule steps and opening the exterior door by pulling it inward with her left hand, § 87(2)(b) heard § 87(2)(b) say from behind, “§ 87(2)(b) watch!” (04 Board Review). When § 87(2)(b) looked back, she saw PO Biondo and another officer, identified as PO Pereyra, running after her. PO Pereyra then slammed the exterior front door on her, hitting § 87(2)(b) in her face and left breast and pinning her between the double doors, with half her body inside, half her body outside the stationhouse. She screamed, “You’re hurting me!” She managed to wrestle herself out from in between the two doors and moved onto the sidewalk. PO Biondo followed her out and grabbed her by her left elbow and wrist and twisted her wrist behind her back. The twisting caused her to bend over, and she again screamed, “You’re hurting me.” PO Biondo said, “I’m gonna get you for resisting arrest.” She then said, “I’m not resisting, but you’re hurting me.” PO Pereyra, who grabbed § 87(2)(b) by her right arm, leaned towards her and whispered, “Relax. He’s gonna give you a ticket and release you.” PO Biondo then placed her in handcuffs and brought her back inside the stationhouse, where he issued her a summons for disorderly conduct. She was released upon receiving the summons.

§ 87(2)(b) statement was largely consistent with § 87(2)(b). He stated that after § 87(2)(b) gave PO Biondo the finger, PO Biondo said aloud, “That’s it. You’re under arrest” He similarly described that PO Pereyra shut the door on § 87(2)(b) as she exited the stationhouse and PO Biondo twisted one of her arms as he placed her in handcuffs (05 Board Review).

At 00:59 in PO Pereyra’s BWC footage, as § 87(2)(b) opens the left exterior door inward, PO Pereyra steps around § 87(2)(b) and places his left hand flat against the same door and grabs her left hand with his right hand (01 Board Review). § 87(2)(b) right leg is out the door while her left leg is still in the vestibule. § 87(2)(b) entire torso and upper legs are captured when PO Pereyra places his hand on the door though not her head. PO Pereyra’s and § 87(2)(b) arms are also between the doors at this point and the door remains several inches open. Audio is captured beginning at 01:00. At 01:01, § 87(2)(b) pulls her body and her left arm away from PO Pereyra to her right and slips through the double doors of the exterior front entrance, freeing herself of PO Pereyra’s grip as she does so and says, “get off of me”. At no point while exiting does she state, “You’re hurting me!” PO Pereyra follows her onto the sidewalk immediately in front of the entrance, grabs her right arm and states, “come over here.” At 01:08, PO Biondo comes within a couple feet of her and says, “Let’s go. Now you’re getting collared.” § 87(2)(b) is also several feet from her, speaking with PO Pereyra. As PO Biondo reaches for her left arm, he tells her she will “go to jail” if she resists arrest. At 01:18, both of § 87(2)(b) hands are visible in front of her, though the rest of her body is not in the frame. Several seconds later, PO Biondo says, “She’s getting a summons. 100% getting a summons.” § 87(2)(b) responds, “That’s fine.” At 01:23, Sgt. Armando Colon is visible to PO Pereyra’s right and across from and facing PO Biondo and § 87(2)(b). He is not wearing a body worn camera. At 01:25, PO Biondo is standing to § 87(2)(b) left with his left hand free and holding handcuffs in his right hand. PO Biondo says, “Stop,” though § 87(2)(b) is not in the frame. At 01:26, § 87(2)(b) says “don’t touch me.” Immediately after she says this, PO Biondo lunges in her direction with his left arm extended forward and states, “Now you’re getting--I’m not gonna tell you again! I’m not gonna tell you again!” as he grabs her left arm with his hands. As he does so, § 87(2)(b) upper body jerks forward so that she is bent forward at the

waist. At 01:35, PO Biondo says, “you’ve got five seconds to put your hands behind your back.” At 01:49, PO Biondo handcuffs § 87(2)(b) arms behind her back. PO Pereyra then escorts § 87(2)(b) back into the stationhouse. At no point prior to her jerking forward did PO Biondo tell § 87(2)(b) to put her hands behind her back or give her any specific instructions.

PO Biondo’s first BWC video begins with him standing to the left of § 87(2)(b) in front of the stationhouse and in the process of handcuffing her, and after the point at which § 87(2)(b) jerked forward (**02 Board Review**). At 00:18, PO Pereyra escorts § 87(2)(b) back into the stationhouse. PO Biondo activates his BWC at 00:59 as evidenced by the audio engaging at that time.

PO Pereyra stated he intended to detain § 87(2)(b) in order to ensure that she received a summons for disorderly conduct (**08 Board Review**). When he followed her into the vestibule, § 87(2)(b) had already opened one of the exterior double doors to get outside. To prevent § 87(2)(b) from leaving the stationhouse, he moved around § 87(2)(b) who was walking out with § 87(2)(b) and placed his left hand on the double door she had opened with the intent of keeping § 87(2)(b) from stepping outside. As he placed his hand on the door, § 87(2)(b) body was in between the double doors. He did not hit § 87(2)(b) with the door, nor did he hit her against the door. § 87(2)(b) pushed back on the partially open door with her hands and managed to fit her way between the two doors to get outside. He did not recall the door making contact with her body. He followed her outside, grabbed her hand, and told her to put her hands behind her back. He then put one handcuff on one of her wrists while PO Biondo put a handcuff on the other. PO Pereyra then walked § 87(2)(b) back into the stationhouse. PO Biondo stated he and PO Pereyra followed § 87(2)(b) out and PO Pereyra handcuffed her (**07 Board Review**).

Sgt. Colon was the desk officer at the time of the incident. His testimony was largely consistent with PO Biondo’s and PO Pereyra’s. He stated that he followed the group outside and as PO Biondo and PO Pereyra began to handcuff § 87(2)(b) she yelled at them to get off of her but did not attempt to flee. After watching PO Pereyra’s BWC footage, he stated PO Biondo ordered § 87(2)(b) to “stop” because she was moving her arms away from him (**21 Board Review**). He stated her body jerked forward because she lost her balance, and not as a result of PO Biondo twisting her arm behind her back.

PO Biondo initially stated he did not touch § 87(2)(b) while she was being handcuffed outside the stationhouse, nor was there any struggle in handcuffing her (**07 Board Review**). After viewing BWC footage, he changed his initial testimony and stated he handcuffed § 87(2)(b) though stated that he did not twist § 87(2)(b) arm behind her back nor did he witness PO Pereyra hit § 87(2)(b) against the door of the stationhouse.

NYPD Patrol Guide 221-01 states “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody” (**12 Board Review**).

Both PO Pereyra and § 87(2)(b) stated PO Biondo told § 87(2)(b) that she was under arrest immediately after she displayed her middle finger. § 87(2)(g)

As BWC showed, PO Pereyra placed his left hand on the door while § 87(2)(b) had one leg inside and one leg outside, and grabbed her left hand, which was between the doors, momentarily impeding her exit. The door did not make any sudden swinging or jerking motions, no part of § 87(2)(b) body was captured or pinned between the doors and § 87(2)(b) did not complain of any pain or being struck with the door. § 87(2)(g)

It is

therefore recommended that **Allegation B** be closed as **unfounded**.

BWC corroborated § 87(2)(b) that PO Biondo used force when he placed her in handcuffs. While § 87(2)(b) torso blocks what PO Biondo does as he grabs her left arm, her whole upper body can be seen jerking forward in reaction to his movements. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**15 Board Review**).
- PO Biondo has been a member of service for 17 years and has been a subject in 13 CCRB complaints and 33 allegations, of which one was substantiated.
 - 201708778 involved a substantiated allegation of a forcible removal to a hospital. The Board recommended Command Discipline A. The NYPD has not provided the CCRB with its imposed discipline.

Mediation, Civil, and Criminal Histories

- Mediation was not offered for this case as the Mediation Unit was not accepting cases at the time it was received.
- As of June 27, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**16 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	<u>Coleson Smith</u>	<u>Investigator Coleson Smith</u>	<u>12/15/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>12.19.22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date